

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 1078

By: Smith

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6 AS INTRODUCED

7 An Act relating to firefighter clothing allowance;
8 creating the Rural Volunteer Firefighter Clothing
9 Allowance Grants Act; declaring legislative intent;
10 defining terms; creating the Oklahoma Firefighter
11 Clothing Allowance Revolving Fund; establishing fund
12 parameters; providing for clothing allowance grant
13 awards; requiring grant utilization and expenditures
14 be memorialized and submitted to the State Board of
15 Agriculture; providing authority for disbursement of
16 clothing grant awards; placing limitations on the
17 utilization of certain funds; requiring staff and
18 administrative support be provided by certain agency;
19 authorizing the promulgation of rules with certain
20 limitations; providing methodology and criteria for
21 allocation of certain clothing allowance grant
22 awards; providing for reallocation of clothing
23 allowance grant awards under certain conditions;
24 providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 85.72A of Title 74, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Rural Volunteer
Firefighter Clothing Allowance Grants Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 85.72B of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 It is the intent of the Legislature, through enactment of the
5 Rural Volunteer Firefighter Clothing Allowance Grants Act, to
6 protect the safety of Oklahomans and fire service personnel from
7 fire and related hazards by using monetary grants to alleviate
8 certain costs and incentivize recruitment and retention related to
9 certain rural volunteer firefighters.

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 85.72C of Title 74, unless there
12 is created a duplication in numbering, reads as follows:

13 As used in the Rural Volunteer Firefighter Clothing Allowance
14 Grants Act:

15 1. "Applicant" means a volunteer firefighter applying for the
16 clothing allowance;

17 2. "Board" means the Oklahoma State Board of Agriculture;

18 3. "Department" means the Oklahoma Department of Agriculture,
19 Food and Forestry;

20 4. "Eligible Applicant" means an applicant who complies with
21 the requirements of Section 6 of this act and has completed one year
22 or more of volunteer firefighting experience.
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1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 85.72D of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Oklahoma Department of Agriculture, Food and Forestry to be
6 designated the "Oklahoma Firefighter Clothing Allowance Revolving
7 Fund". The fund shall be a continuing fund, not subject to fiscal
8 year limitations, and shall consist of all monies received by the
9 Oklahoma Department of Agriculture, Food and Forestry from
10 appropriations, donations, grants, or other sources of funding
11 specifically designated for deposit to the Oklahoma Firefighter
12 Clothing Allowance Revolving Fund. All monies accruing to the
13 credit of said fund are hereby appropriated and may be budgeted and
14 expended by the Oklahoma Department of Agriculture, Food and
15 Forestry for the purpose of funding clothing allowance grant awards
16 as authorized by this act. Expenditures from said fund shall be
17 made upon warrants issued by the State Treasurer against claims
18 filed as prescribed by law with the Director of the Office of
19 Management and Enterprise Services for approval and payment.

20 SECTION 5. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 85.72E of Title 74, unless there
22 is created a duplication in numbering, reads as follows:

23 A. The Oklahoma State Board of Agriculture shall:
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1 1. Develop and implement procedures for the disbursement of
2 clothing allowance grant awards to eligible applicants, to be used
3 by eligible applicants to fund and reimburse costs related to
4 approved purposes;

5 2. Develop and implement clothing allowance grant application,
6 submission, and evaluation procedures as required to implement the
7 provisions of this act;

8 3. Develop and implement an appeals process for eligible
9 applicants to contest clothing allowance grant application denials
10 and denials of specific fund use requests contained in submitted
11 applications;

12 4. Maintain oversight over the expenditure of clothing
13 allowance grant awards to ensure grant proceeds are used exclusively
14 for approved purposes; and

15 5. Suspend allocations of clothing allowance grant awards to
16 eligible applicants found by the Board to be out of compliance with
17 Board procedures or to have utilized such awards for nonapproved
18 purposes; provided that the Board shall resume such allocations once
19 the Board has determined the eligible applicant has adequately
20 remedied the cause of such suspension.

21 B. No clothing allowance grant awarded pursuant to the
22 provisions of this act shall be utilized or expended, unless such
23 utilization or expenditure is memorialized in a resolution or
24 equivalent government action and submitted to the Board.

1 C. The Department shall provide necessary staff and
2 administrative support to the Oklahoma State Board of Agriculture.

3 D. The Department shall promulgate rules necessary to implement
4 the provisions of this act; provided that the Department shall only
5 promulgate such rules as requested or approved by the Board.

6 SECTION 6. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 85.72F of Title 74, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The Board shall conduct an initial disbursement of clothing
10 allowance grant awards to participating eligible applicants. Such
11 clothing allowance grant awards shall be allocated amongst the
12 eligible applicants based on the following criteria, giving equal
13 weight to each criteria:

14 1. The applicant must be a member of a Certified Oklahoma Fire
15 Department;

16 2. The applicant must have responded to at least seventy-five
17 percent (75%) of the fire department responses during the fiscal
18 year;

19 3. The applicant must have completed twenty-four hours of
20 firefighter training during the fiscal year;

21 4. Each applicant for the clothing allowance must complete and
22 submit an application form prescribed by the Forestry Services
23 Division of the Department to their respective Fire Chief no later
24 than the last business day in July;

1 5. The Fire Chief shall certify that application requirements
2 have been met and submit applications to the Forestry Services
3 Division of the Department for payment no later than the last
4 business day in August; and

5 6. Grant awards shall be processed and distributed to each fire
6 department no later than the last business day in September.

7 B. Following the awarding of clothing allowance grant awards
8 pursuant to subsection A of this section, any remaining unencumbered
9 balance in the Oklahoma Firefighter Clothing Allowance Revolving
10 Fund shall be available to the Board to award as grants to eligible
11 participants; provided such awards shall only be utilized by
12 eligible participants for approved purposes.

13 C. In the event an eligible applicant is unavailable, any
14 remaining allocations of an awarded clothing allowance grant award
15 in excess of Five Hundred Dollars (\$500.00) shall be reallocated
16 equitably based on the composition of the successor eligible
17 applicant or the successor eligible applicants.

18 SECTION 7. This act shall become effective November 1, 2025.

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